

1 ENGROSSED HOUSE
2 BILL NO. 3288

By: Roe of the House

3 and

4 Logan of the Senate
5

6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 11-103.9, which relates to physical education
8 programs; adding full-day prekindergarten to
9 elementary physical education instruction
10 requirements; increasing amount of weekly physical
11 education instruction for elementary school students;
12 prohibiting the withholding of physical education as
13 a form of punishment; increasing amount of weekly
14 physical activity required for physical education
15 classes; directing schools to provide recess or
16 physical activity before tests or assessments;
17 requiring local school boards to adopt a policy
18 regarding weekly physical education instruction for
19 students in grades six through twelve; increasing
20 amount of recommended daily recess for
21 prekindergarten through fifth grade; and providing an
22 effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY 70 O.S. 2021, Section 11-103.9, is
amended to read as follows:

Section 11-103.9. A. Except as otherwise provided for in this
section, the State Board of Education shall require, as a condition
of accreditation, that school districts provide to all students
physical education programs which may include athletics.

B. The Board shall require, as a condition of accreditation,
that public elementary schools provide instruction, for students in

1 full-day prekindergarten, kindergarten, and grades one through five,
2 in physical education or exercise programs for a minimum of an
3 average of ~~sixty (60)~~ one hundred fifty (150) minutes each week.
4 The time students participate in recess shall not be counted toward
5 the ~~sixty minutes per week~~ one-hundred-fifty-minutes-per-week
6 physical education requirement. ~~Schools may exclude from~~
7 ~~participation in the physical education or exercise programs~~
8 ~~required in this subsection those students who have been placed into~~
9 ~~an in-house suspension or detention class or placement or those~~
10 ~~students who are under an in-school restriction or are subject to an~~
11 ~~administrative disciplinary action~~ Physical education activities
12 shall not be withheld as a form of punishment in students in
13 prekindergarten through fifth grade, except in situations where
14 aggression or other threatening behaviors has threatened the safety
15 of the individual student or other students. In this situation, the
16 student involved shall have accommodations made so he or she will be
17 allowed to participate in some type of physical activity.

18 C. The Board shall require, as a condition of accreditation,
19 that public elementary schools provide to students in full-day
20 prekindergarten, kindergarten, and grades one through five, in
21 addition to the requirements set forth in subsection B of this
22 section, an average of sixty (60) minutes each week of physical
23 activity, which may include, but not be limited to, physical
24 education, exercise programs, fitness breaks, recess, and classroom

1 activities, and wellness and nutrition education. During end-of-
2 term or school-year assessment and testing, every attempt shall be
3 made to coordinate recess periods, or periods of moderate physical
4 activity, within the ninety-minute period prior to the time of such
5 assessment or testing session beginning. Each school district board
6 of education shall determine the specific activities and means of
7 compliance with the provisions of this subsection, giving
8 consideration to the recommendations of each school's Healthy and
9 Fit School Advisory Committee as submitted to the school principal
10 pursuant to the provisions of Section 24-100a of this title.

11 D. The Board shall disseminate information to each school
12 district on the benefits of physical education programs and shall
13 strongly encourage districts to provide physical education
14 instruction or exercise programs to students in grades six through
15 twelve. Local school boards shall adopt a policy related to the
16 requirement of physical education instruction for students in grades
17 six through twelve. The Board shall ~~also~~ strongly encourage school
18 districts to incorporate physical activity into the school day by
19 providing to students in full-day prekindergarten, kindergarten, and
20 grades one through five at least ~~a twenty-minute~~ two fifteen-minute
21 ~~daily recess~~ recesses, which shall be in addition to the ~~sixty (60)~~
22 one hundred fifty (150) minutes of physical education as required by
23 subsection B of this section, and by allowing all students brief
24

1 physical activity breaks throughout the day, physical activity
2 clubs, and special events.

3 E. Instruction in physical education required in this section
4 shall be aligned with the subject matter standards as adopted by the
5 Board.

6 F. The physical education curriculum shall be sequential,
7 developmentally appropriate, and designed, implemented, and
8 evaluated to enable students to develop the motor and self-
9 management skills and knowledge necessary to participate in physical
10 activity throughout life. Each school district shall establish
11 specific objectives and goals the district intends to accomplish
12 through the physical education curriculum.

13 G. In identifying the essential knowledge and skills, the State
14 Board of Education shall ensure that the subject matter standards
15 for physical education:

16 1. Emphasize the knowledge and skills capable of being used
17 during a lifetime of regular physical activity;

18 2. Are consistent with national physical education standards
19 for:

20 a. the information that students should learn about
21 physical activity, and

22 b. the physical activities that students should be able
23 to perform;

1 3. Require that, on a weekly basis, at least ~~fifty percent~~
2 ~~(50%)~~ eighty percent (80%) of the physical education class be used
3 for actual student physical activity and that the activity be, to
4 the extent practicable, at a moderate or vigorous level;

5 4. Offer students an opportunity to choose among many types of
6 physical activity in which to participate;

7 5. Offer students both cooperative and competitive games;

8 6. Meet the needs of students of all physical ability levels,
9 including students who have a disability, chronic health problem, or
10 other special need that precludes the student from participating in
11 regular physical education instruction but who might be able to
12 participate in physical education that is suitably adapted and, if
13 applicable, included in the student's individualized education
14 program;

15 7. Teach self-management and movement skills;

16 8. Teach cooperation, fair play, and responsible participation
17 in physical activity;

18 9. Promote student participation in physical activity outside
19 of school; and

20 10. Allow physical education classes to be an enjoyable
21 experience for students.

22 H. The Board shall adopt rules to implement the provisions of
23 this section.

24 SECTION 2. This act shall become effective July 1, 2028.

1 Passed the House of Representatives the 9th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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8 _____
9 Presiding Officer of the Senate